as a result of his suit by decreasing his tax liability or bolstering programs that benefit him. To the contrary, the decision of how to allocate any such savings is the very epitome of a policy judgment committed to the "broad and legitimate discretion" of lawmakers, which "the courts cannot presume either to control or to predict." *ASARCO*, *supra*, at 615 (opinion of KENNEDY, J.). Under such circumstances, we have no assurance that the asserted injury is "imminent"—that it is "certainly impending." *Whitmore* v. *Arkansas*, 495 U. S. 149, 158 (1990) (internal quotation marks omitted); see *Defenders of Wildlife*, 504 U. S., at 564–565, n. 2.

The foregoing rationale for rejecting federal taxpayer standing applies with undiminished force to state taxpayers. We indicated as much in *Doremus* v. *Board of Ed. of Hawthorne*, 342 U. S. 429 (1952). In that case, we noted our earlier holdings that "the interests of a taxpayer in the moneys of the federal treasury are too indeterminable, remote, uncertain and indirect" to support standing to challenge "their manner of expenditure." *Id.*, at 433. We then "reiterate[d]" what we had said in rejecting a federal taxpayer challenge to a federal statute "as equally true when a state Act is assailed: 'The [taxpayer] must be able to show . . . that he has sustained . . . some direct injury . . . and not merely that he suffers in some indefinite way in common with people generally.'" *Id.*, at 433–434 (quoting *Frothingham*, *supra*, at 488); see *ASARCO*, *supra*, at 613–614 (opinion of KENNEDY, J.) ("[W]e have likened state taxpayers to federal taxpayers" for purposes of taxpayer standing (citing *Doremus*, *supra*, at 434)).

The allegations of injury that plaintiffs make in their complaint furnish no better basis for finding standing than those made in the cases where federal taxpayer standing was denied. Plaintiffs claim that DaimlerChrysler's tax credit depletes the Ohio fisc and "impos[es] disproportionate burdens on [them]." App. 28a. This is no different from similar claims by federal taxpayers we have already rejected under

Article III as insufficient to establish standing. See, *e. g.*, *Frothingham*, 262 U. S., at 486 (allegation of injury that the effect of government spending "will be to increase the burden of future taxation and thereby take [plaintiff's] property without due process of law").

State policymakers, no less than their federal counterparts, retain broad discretion to make "policy decisions" concerning state spending "in different ways . . . depending on their perceptions of wise state fiscal policy and myriad other circumstances." *ASARCO*, *supra*, at 615 (opinion of KENNEDY, J.). Federal courts may not assume a particular exercise of this state fiscal discretion in establishing standing; a party seeking federal jurisdiction cannot rely on such "[s]peculative inferences . . . to connect [his] injury to the challenged actions of [the defendant]," *Simon*, 426 U. S., at 45; see also *Allen*, 468 U. S., at 759. Indeed, because state budgets frequently contain an array of tax and spending provisions, any number of which may be challenged on a variety of bases, affording state taxpayers standing to press such challenges simply because their tax burden gives them an interest in the state treasury would interpose the federal courts as "'virtually continuing monitors of the wisdom and soundness'" of state fiscal administration, contrary to the more modest role Article III envisions for federal courts. See *id.*, at 760–761 (quoting *Laird* v. *Tatum*, 408 U. S. 1, 15 (1972)).

For the foregoing reasons, we hold that state taxpayers have no standing under Article III to challenge state tax or spending decisions simply by virtue of their status as taxpayers.[4]

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[4] The majority of the Courts of Appeals to have considered the issue have reached a similar conclusion. See, *e. g.*, *Booth* v. *Hvass*, 302 F. 3d 849 (CA8 2002); *Board of Ed. of Mt. Sinai Union Free School Dist.* v. *New York State Teachers Retirement System*, 60 F. 3d 106 (CA2 1995); *Colorado Taxpayers Union, Inc.* v. *Romer*, 963 F. 2d 1394 (CA10 1992); *Taub* v. *Kentucky*, 842 F. 2d 912 (CA6 1988); *Korioth* v. *Briscoe*, 523 F. 2d 1271

C

Plaintiffs argue that an exception to the general prohibition on taxpayer standing should exist for Commerce Clause challenges to state tax or spending decisions, analogizing their Commerce Clause claim to the Establishment Clause challenge we permitted in *Flast* v. *Cohen*, 392 U. S. 83. *Flast* held that because "the Establishment Clause . . . specifically limit[s] the taxing and spending power conferred by Art. I, § 8," "a taxpayer will have standing consistent with Article III to invoke federal judicial power when he alleges that congressional action under the taxing and spending clause is in derogation of" the Establishment Clause. *Id.*, at 105–106. *Flast* held out the possibility that "other specific [constitutional] limitations" on Article I, § 8, might surmount the "barrier to suits against Acts of Congress brought by individuals who can assert only the interest of federal taxpayers." 392 U. S., at 105, 85. But as plaintiffs candidly concede, "only the Establishment Clause" has supported federal taxpayer suits since *Flast.* Brief for Respondents 12; see *Bowen* v. *Kendrick*, 487 U. S. 589, 618 (1988) ("Although we have considered the problem of standing and Article III limitations on federal jurisdiction many times since *[Flast]*, we have consistently adhered to *Flast* and the narrow exception it created to the general rule against taxpayer standing").

Quite apart from whether the franchise tax credit is analogous to an exercise of congressional power under Article I, § 8, plaintiffs' reliance on *Flast* is misguided: Whatever rights plaintiffs have under the Commerce Clause, they are fundamentally unlike the right not to "'contribute three pence . . . for the support of any one [religious] establishment.'" 392

(CA5 1975); but cf. *Arakaki* v. *Lingle*, 423 F. 3d 954, 967–969 (CA9 2005) (finding state taxpayer standing in light of *Hoohuli* v. *Ariyoshi*, 741 F. 2d 1169 (CA9 1984), but noting that JUSTICE KENNEDY's opinion in *ASARCO Inc.* v. *Kadish*, 490 U. S. 605 (1989), would "carry persuasive value" absent *Hoohuli*).